IN THE SUPREME COURT OF INDIA

ANTICIPATORY BAIL JURISPRUDENCE JURISDICTION

(Constitution Bench (5 Judges))

CASE NUMBER: Criminal Appeal No. 335 of 1978 **CNR: SCIN010003351978**

REPORTABLE CITATION: (1980) 2 SCC 565 DATE: April 09, 1980

CORAM: Hon'ble Y.V. Chandrachud, C.J., P.N. Bhagwati, N.L. Untwalia, R.S. Pathak, O. Chinnap pa Reddy, JJ.

Gurbaksh Singh Sibbia and Others v. State of Punjab

Gurbaksh Singh Sibbia and Others ...PETITIONER(S)

VERSUS

State of Punjab ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973 | Sections: Section 438 CrPC, Section 437 CrPC, Article 21

Five-Judge Constitution Bench holding that judicial discretion under Section 438 CrPC to grant anticipatory bail must remain wide and untrammeled by judicially created rigid conditions. High Courts and Sessions Courts possess broad authority to grant anticipatory bail to protect citizens against unjustified arrests; courts should not place artificial limits on this power.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Section 438 is a procedural provision which is concerned with the personal liberty of each individual citizen. It confers wide powers on the High Court and the Court of Session to grant anticipatory bail and that discretion, by its very nature, cannot be circumscribed by any rigid, iron formula or cast in a stone jacket.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Anticipatory Bail Scope Expanded (Outcome: Allowed)

Precedential Authority: Good Law (5-Judge Constitution Bench Precedent)

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